

25TRCV00594 25TRCV00594

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Case Number: 25TRCV00594 Hearing Date: July 8, 2026 Dept: P

Motion to Set Aside Dismissal

Moving Party: Plaintiff Christopher Davis

Responding Party: None

RULING

The court considered the moving papers. Plaintiff's Motion to Set Aside Dismissal is GRANTED.

PROCEDURAL BACKGROUND

On February 24, 2025, Plaintiff Christopher Davis ("Plaintiff") filed a complaint against Defendants Torrance Transit System, City of Torrance, John Doe, and DOES 1 through 50, inclusive, alleging three causes of action for: (1) Negligence (Common Carrier); (2) Negligence (Government Code Section 851.2); and (3) Negligent Hiring, Training, and Retention.

On September 16, 2025, the court imposed sanctions against Plaintiff's counsel for failure to file a Case Management Statement and failure to appear.

On December 22, 2025, the court dismissed Plaintiff's complaint without prejudice for failure to prosecute.

On June 11, 2026, Plaintiff filed the instant motion.

FACTUAL BACKGROUND

Plaintiff alleges that on March 17, 2024, he was a passenger on the Torrance Transit Bus number 8 that was traveling through Redondo Beach, California. (Complaint, ¶ 9.) Plaintiff alleges that while on the bus, he observed another passenger preparing to smoke marijuana. (Complaint, ¶ 10.) Plaintiff alleges that he requested the bus driver to intervene, but the driver disregarded Plaintiff's request and continued driving. (Complaint, ¶ 10.) Plaintiff alleges that shortly after, the passenger with the marijuana, along with four or five other individuals, began beating Plaintiff. (Complaint, ¶ 10.) Plaintiff alleges that he lost consciousness and has suffered serious injuries. (Complaint, ¶¶ 10-11.)

LEGAL STANDARD

Code of Civil Procedure Section 473(b) provides: “[t]he court may, upon any terms as may be just, relieve a party or the party’s legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party’s mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.”

“[W]hen relief under section 473 is available, there is a strong public policy in favor of granting relief and allowing the requesting party his or her day in court.” (Rappleyea v. Campbell (1994) 8 Cal.4th 975, 981-982.)

Relief under Code of Civil Procedure Section 473(b) is mandatory when based on an attorney’s affidavit of fault; otherwise, it is discretionary. (English v. IKON Business Solutions, Inc. (2001) 94 Cal.App.4th 130, 138.) An application for discretionary or mandatory relief must be made no more than six months after entry of the judgment, dismissal, order, or other proceeding from which relief is sought. (Id. at 143.)

DISCUSSION

Moving Party’s Argument

Plaintiff moves for an order setting aside the dismissal of Plaintiff’s action. Plaintiff argues that relief is mandatory because the dismissal was entered as a result of Plaintiff’s counsel’s mistake, inadvertence, surprise or neglect. Specifically, Plaintiff argues that his counsel mistakenly calendared the December 22, 2025 status hearing incorrectly and thus did not appear, resulting in the dismissal of Plaintiff’s action. Plaintiff also argues that on three separate occasions, his counsel missed the dates to file a motion to continue the trial due to personal matters.

Merits of the Motion

Plaintiff moves to set aside the dismissal of Plaintiff’s action on the basis of attorney mistake, inadvertence, surprise, and neglect. Here, Plaintiff’s counsel declares that he missed the December 22, 2025 hearing “due to a calendaring error that was entirely on the part of counsel.” (Malczynski Decl., ¶ 4.)

Plaintiff’s counsel further declares that while a hearing on a Motion to Set Aside Dismissal was scheduled for February 18, 2026, Plaintiff’s counsel had a family emergency the day after the hearing reservation was made. (Malczynski Decl., ¶ 5.) Plaintiff’s counsel declares that due to the unexpected death of a family member, he missed the date to file moving papers, and the court vacated the motion hearing. (Malczynski Decl., ¶ 5.)

Plaintiff’s counsel declares that a second hearing on a Motion to Set Aside Dismissal was scheduled for April 29, 2026, but counsel became ill and was unable to file the moving papers, resulting in the court vacating the hearing. (Malczynski Decl., ¶ 6.)

Next, Plaintiff’s counsel declares that a third hearing on a Motion to Set Aside Dismissal was scheduled for May 27, 2026, but Plaintiff failed to file the moving papers due to Plaintiff’s counsel’s calendaring error, and the court vacated the hearing. (Malczynski Decl., ¶ 7.)

Plaintiff's counsel declares that he "is feeling better, his family emergency has been taken care of and he has implemented a better calendaring system to help keep him on task and on time for all future hearings and deadlines." (Malczynski Decl., ¶ 8.)

The court finds that Plaintiff's motion is timely, as Plaintiff's complaint was dismissed on December 22, 2025, and the six-month deadline to file the motion ended on June 22, 2026, pursuant to Code of Civil Procedure Section 473(b). Here, Plaintiff filed his motion on June 11, 2026, which falls within the six-month timeframe.

1. Mandatory Relief

As a rule, mandatory relief under Section 473(b) is not available when the action was dismissed due to the plaintiff's counsel's failure to prosecute. (See *Graham v. Beers* (1994) 30 Cal.App.4th 1656, 1661 [when an action is dismissed under the discretionary dismissal statutes due to a failure to prosecute, mandatory relief is not available under section 473(b)]; *Peltier v. McCloud River R.R. Co.* (1995) 34 Cal.App.4th 1809, 1825 [allowing a plaintiff to escape the discretionary dismissal statutes under the mandatory relief provision of section 473(b) would render the discretionary dismissal statutes a nullity].)

However, given that the court dismissed the matter for counsel's serial failure to appear and failure to ever file a CMC statement and but that the two year period to prosecute had not yet expired, the court finds that this is a case wherein the mandatory relief provision is applicable.

Accordingly, Plaintiff's Motion to Set Aside Dismissal pursuant to Code of Civil Procedure Section 437(b) is GRANTED.

CONCLUSION

Based on the foregoing, Plaintiff's Motion to Set Aside Dismissal is GRANTED.

Plaintiff is ordered to serve the defendants within 60 days of this ruling. Plaintiff is ordered to file a Case Management Conference statement within the statutory period prior to the next court date. Plaintiff's counsel is ordered to appear at the next court date.